

Here, Plaintiff's causes of action for wrongful termination, disability discrimination, failure to engage in interactive process etc. are all factually predicated on his disability, a hernia. Defendant is attempting to subpoena medical records from the medical provider that diagnosed the hernia and referred Plaintiff to a surgeon that Plaintiff has been unable to identify. Plaintiff has right of privacy in his medical records. See *Grafilo v. Wolsohn* (2019) 33 Cal.App.5th 1024, 1034. However, by filing the present suit he has waived any right in this records that are directly relevant to the plaintiff's claim and essential to the fair resolution of the lawsuit. *Davis, supra* 7 Cal.App.4th at 1014. The Court has reviewed the scope of the subpoena and finds that it seeks records directly relevant to Plaintiff's claims. The Court also finds that there is not a less intrusive means to obtain this information. The request to quash or modify the subpoena is denied.

Sanctions: Plaintiff has requested sanctions against Defendant based on alleged misuse of the discovery process. CCP § 2023.030(a). The Court is denying the request to quash and therefore no misuse has occurred. Defendant has also requested sanctions, alleging the present motion was brought in bad faith. While Defendant has ultimately prevailed in opposing the motion, the Court does not find that it was brought in bad faith. Sanctions will not be awarded.

The motion is **DENIED**. The requests for sanctions is **DENIED**. A proposed order was lodged with the Court and will be modified to conform to the Court's final ruling.

IN RE: BELL

Case Number: 24CV-0206587

Tentative Ruling on Petition for Change of Name: Petitioner Jacqueline Nicole Bell seeks to change her name to Jacqueline Nicole Wagner. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

BURBANK VS. STATE OF CALIFORNIA, ET AL.

Case Number: 24CV-0204945

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on January 29, 2025 to Plaintiff Tina Burbank for her failure to timely serve the Complaint and Summons on defendants pursuant to CRC 3.110(b). "The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint." CRC 3.110(b). The Complaint in this matter was filed on May 8, 2024, and no Proof of Service of Summons has been filed. Plaintiff has not filed a written response to the Order to Show Cause.

The Court finds that Plaintiff has violated CRC 3.110(b). With no sufficient excuse for the delay, sanctions are imposed in the amount of \$250.00 against Plaintiff. The clerk is instructed to prepare a separate Order of Sanctions. The Court will issue an Order to Show Cause Re: Dismissal for failure to timely serve and failure to timely prosecute. Hearing on the Order to Show Cause Re: Dismissal will be **Monday, April 21, 2025 at 8:30 a.m. in Department 63**. The clerk is directed to issue the Order to Show Cause Re: Dismissal. The matter will be on calendar on **Monday, April 21, 2025 at 9:00 a.m. in Department 63** for review regarding status of service. The Court expects the matter to be served prior to the next hearing and proof of service filed with the court.

GUILES VS. FOX, MD, ET AL.

Case Number: 23CV-0202397

Tentative Ruling on Motion for Summary Judgment: Defendants Robert C. Fox, M.D. and Robert C. Fox, M.D., Inc. move for summary judgment in this medical malpractice action. Plaintiff Meryl L. Guiles filed an Opposition.